

As Movants argue, Christensen is outside the District's control, potentially adverse to the District, and is noticed for examination without any confining subject matter topics. (Movants' Reply 7:1–2.) Movants contend there is no reason to believe Christensen would obey instructions from the District's counsel to refuse to answer a question on the basis of privilege. (*Id.* at 7:2–4.) Protective orders are the appropriate vehicle to define the boundaries of inquiry and limit improper questioning before it occurs. (CCP § 2025.420(b).) EMC's response that privilege concerns can be addressed through timely objections during the deposition does not answer the problem, because the person best positioned to raise those objections is a prepared District designee chosen and instructed by the entity that holds the privilege, not a nonparty former employee. (See CCP § 2025.230; Evid. Code §§ 953, 954.)

In sum, EMC has failed to carry its burden to justify individual, nonparty discovery from Christensen.

2.

CASE #	CASE NAME	HEARING NAME
CVPS2501285	WEBB VS DESERT HOT SPRINGS OIL CORPORATION	MOTION TO BE RELIEVED AS COUNSEL AS TO MARGARET WEBB

Tentative Ruling: No tentative ruling. Hearing will be conducted on Wednesday August 19, 2026 8:30 a.m. Department PS2.

3.

CASE #	CASE NAME	HEARING NAME
CVPS2501431	GAMALIEL ROJO VS GENERAL MOTORS LLC	MOTION FOR ATTORNEYS FEES BY SENET GAMALIEL ROJO

Tentative Ruling: Granted.

Attorney fees in the reduced, but reasonable amount of \$14,165.00 and costs in the amount of \$1,758.15 are payable by Defendant to Plaintiff within 30 days of this order becoming final.

Moving party to provide notice pursuant to CCP § 1019.5.

Plaintiff Senet Gamaliel Rojo brings this Song-Beverly action regarding a 2024 GMC Canyon that had engine defects. On 2/27/25, Plaintiff filed his complaint for: (1) Civil Code § 1793.2(d); (2) Civil Code § 1793.2(b); (3) Civil Code § 1793.2(a)(3); (4) breach of express warranty; and (5) breach of implied warranty of merchantability. On 2/23/26, Plaintiff filed a notice of settlement.

Plaintiff moves for attorney fees of \$17,398, a .3 multiplier of \$5,219.40, and costs of \$1,758.15. Plaintiff argues that fees and costs are mandatory to the prevailing party. Plaintiff contends counsel's rate are reasonable as shown by other cases. Plaintiff contends that hours billed are reasonable as any entries that are duplicative, redundant or unnecessary have been removed. Plaintiff asserts a multiplier is warranted.

In opposition, Defendant contends that the parties quickly settled at mediation for a case in 5 months. It argues counsel's \$525 rate is excessive. It challenges specific entries as duplicative, unreasonable, and estimated work for the fees. It asserts that the multiplier is not warranted.

Song Beverly Attorney Fees

Under Civil Code § 1794(d) (Song-Beverly Act), “[i]f the buyer prevails in an action under this section, the buyer shall be allowed by the court as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney’s fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.”

Here, the parties apparently settled, Plaintiff is the prevailing party, with the court to decide fees.

The matter of reasonableness of a party's attorney's fees is within the sound discretion of the trial judge. (*Bruckman v. Parliament Escrow Co.* (1989) 190 Cal.App.3d 1051, 1062.) Courts generally consider several factors in determining the reasonableness of a party's attorney's fees. These include "the nature of the litigation, the difficulty of the litigation, the attention given to the issues, the success of the attorney's efforts, and time consumed. [Citation omitted.]" (*PLCM Group, Inc. v. Drexler* (1999) 72 Cal.App.4th 693, 708.) Although a fee request ordinarily should be documented in great detail, the court is entitled to make its own evaluation of the reasonable worth of the work done in light of the nature of the case and the credibility of counsel's declaration, unsubstantiated by time records and billing statements. (See *Weber v. Langholz* (1995) 39 Cal.App.4th 1578, 1587; see also *Bernardi v. County of Monterey* (2008) 167 Cal.App.4th 1379, 1394.) Specifically in exercising its discretion, the Court may consider all of the facts and the entire procedural history of the case in setting the amount of a reasonable attorney's fee award. (*Bernardi, supra*, 167 Cal.App.4th 1379, 1394.)

Lodestar is the objective starting point to determine if attorney's fees are reasonable. (*Nichols v. City of Taft* (2007) 155 Cal.App.4th 1233, 1242.) Lodestar is calculated by assessing the reasonable rate for comparable services in the local community, multiplied by the reasonable number of hours spent on the case. (*Id.*) Lodestar requires the court to determine what a reasonable rate and number of hours expended. (*Concepcion v. Amscan Holdings, Inc.* (2014) 223 Cal.App.4th 1309, 1320.)

According to Plaintiff's counsel's billing records, the lodestar is as follows:

Attorney	Flat Rate	Hourly Rate	Hours	Total
Khoubian	\$3,500.00	\$525	12.8	\$10,220.00
McCabe		\$430	2.1	\$903.00
Paralegal		\$250	25.3	\$6,325.00
TOTAL			40.2	\$17,448.00

The hourly rate for Khoubian, as the principal attorney, is within the range of reasonable rates in Riverside County. However, no information is provided as to attorney McCabe or the paralegal to justify the rates. The court will reduce the rates to \$375 and \$150 respectively.

As for the billing entries, the court reduces the following:

- 2/27/25: The paralegal's 1.3 hours and Khoubian's .7 hours to draft and review the complaint is excessive for a standard lemon law complaint. The court reduces the amount to .5 and .3, respectively.
- 2/27/25: Khoubian's review of conformed copies of the complaint, summons, civil cover sheet and case management notice for .5 is excessive. The Court reduces the amount to .2.
- 4/15/25-4/25/25: The paralegal spent 1.0 hours collectively to email counsel for deposition. This is excessive in light of the minimal depositions that took place. The court reduces the amount to .5.
- 4/25/25: The paralegal spent .5 drafting two emails for mediation. The court reduces this to .3.
- 2/23/26: The paralegal spent .5 to file and serve a notice of settlement. The court reduces this to .2.

Attorney	Flat Rate	Hourly Rate	Hours	Total
Khoubian	\$3,500.00	\$525	12.1	\$9,852.50
McCabe		\$375	2.1	\$787.50
Paralegal		\$150	23.5	\$3,525.00
TOTAL			37.7	\$14,165.00

The purpose of the lodestar enhancement is "to bring financial incentives for attorneys enforcing important constitutional rights...into line with incentives they have to undertake claims for which they are paid on a fee-for-services basis." (*Ketchem v. Moses* (2001) 24 Cal.4th 1122, 1132.) The party seeking the enhancement has the burden of proof. (*Id.* at 1138.) "[A] trial court should award a multiplier for exceptional representation only when the quality of representation far exceeds the quality of representation that would have been provided by an attorney of comparable skill and experience billing at the hourly rate used in the lodestar calculation. Otherwise, the fee award will result in unfair double counting and be unreasonable." (*Id.* at 1138.)

As this is a typical lemon law case, there is no basis for a multiplier.

As for costs, Defendant does not challenge costs.